# Harris County District Court

Cause No. 2024-CV-0008

Samuel Nelson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Oral Deposition of Samuel Nelson

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| **Date:** | February 10, 2025 |
| **Location:** | Offices of Marshall & Dominguez LLP |
| **Examining attorney:** | Richard Marshall, Ashford & Lyle LLP |
| **Defending attorney:** | James Moody, Marshall & Dominguez LLP |

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, so you can just refer to me as the plaintiff.

Q: That's fine for today. Do you understand you're under oath and that your answers have the same force as testimony in court?

A: Yes, I understand.

Q: Let's talk about the collision. Where were you driving when it happened?

A: I was driving north on a two-lane road in Houston, Texas, heading home from the grocery store.

Q: What were you doing right before the impact?

A: I was going maybe twenty-five miles an hour. Traffic was light. The other car came over into my lane, and I braked as hard as I could, but we still hit nose to nose.

Q: Was your vehicle moving much when the two cars made contact?

A: Not really. It was a low-speed impact. Both cars were still drivable, and we pulled over to the shoulder.

Q: Did you feel any pain at the scene?

A: Not right away. I was shaken up, but I felt okay enough to wait for the police. By that evening my neck was stiff and sore.

Q: Did you seek medical treatment?

A: Yes. I went to an urgent care clinic the next day, and then I was referred to a physical therapist.

Q: How often were you going to physical therapy?

A: About two or three times a week for several weeks. They had me do stretches and use heat packs and some light resistance exercises.

Q: Are you still receiving treatment?

A: I still do some home exercises every morning. I've cut back on the clinic visits, but my neck still aches when I turn my head quickly or sit at a desk for long periods.

Q: Has the injury affected your daily activities?

A: It has. I used to run errands and go to the gym most days. For a while I couldn't lift anything heavy, and I had trouble sleeping on my left side. I've been working from home more because sitting in the office was uncomfortable.

Q: Have you had any prior neck injuries or problems?

A: No, nothing serious. I had some occasional stiffness from sleeping wrong, but I never saw a doctor for it.